

26TRCV00791 26TRCV00791

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Case Number: 26TRCV00791 Hearing Date: August 6, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday, August 6, 2026

Calendar No.

PROCEEDINGS

Haagen

Redondo LLC v. Chris Nakagawa, et al.

26TRCV00791

Chris Nakagawa and Cindy Nakagawa, Motion to Set Aside and Vacate
Order Striking Answers, to Set Aside and Vacate the Entry of Default, to
Set Aside and Vacate the Entry of Default Judgment, to Reinstate
Defendants' Answer, and to Vacate Any Writ of Possession

FINAL RULING

Chris Nakagawa and Cindy Nakagawa,
Motion to Set Aside and Vacate Order Striking Answers, to Set Aside and Vacate
the Entry of Default, to Set Aside and Vacate the Entry of Default Judgment, to
Reinstate Defendants' Answer, and to Vacate Any Writ of Possession is granted.

Background

Plaintiff filed the Complaint on March 4, 2026. Plaintiff alleges the following facts. This is a commercial UD action. On May 29, 2026, Defendants' Answer was stricken and default entered.

Motion to Set Aside Default

CCP § 473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Code Civ. Proc., § 473(c)(1) states:

"Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no

greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.”

CCP § 473.5(a) states, in relevant part: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

CCP § 473.5(b) states: “A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” The phrase “actual notice” means “genuine knowledge of the party litigant” and does not include constructive or imputed notice to the client. *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.

“After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable. . . . One ground for equitable relief is extrinsic mistake—a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. Extrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended[.] When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances. [W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted. . . . To set aside a judgment based

upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last[], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.”

Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981–82 (internal citations and quotations omitted; emphasis in original).

CCP § 473(d) empowers the Court to set aside any judgment that is void as a matter of law, e.g., lack of subject matter jurisdiction; lack of personal jurisdiction; lack of proper service of the summons and complaint; or the judgment violated due process rights. See

Dhawan v. Biring (2015) 241 Cal.App.4th 963, 973-74; See also *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; See also *Heidary v. Yadollahi* (2002) 99

Cal.App.4th 857, 862-64. “It is well

settled that a judgment or order which is void on its face, and which requires only an inspection of the judgment roll or record to show its invalidity, may be set aside on motion, at any time after its entry, by the court which rendered the judgment or made the order.”

Hiroko Kawakita Hayashi v. Lorenz (1954) 42 Cal.2d 848, 851.

“Code of Civil Procedure section 473, subdivision (d) (hereafter section 473(d)), provides in relevant part that a court “may ... on motion of either party after notice to the other party, set aside any void judgment or order.”

Under this provision, a party may move to vacate a judgment on the ground of improper service of process.” *California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, 212.

“Mistake is not a ground for relief under section 473, subdivision (b), when the court finds that the ‘mistake’ is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law.

Further, the term surprise, as used in section 473, refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. Finally, as for inadvertence or neglect, to warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. It is the duty of every

party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs. The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.” Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206 (internal citations and quotations omitted).

Defendants “move this Court for an order: 1) setting aside and vacating the Court’s Order of May 29, 2026 striking Defendants’ answers, 2) setting aside and vacating the entry of default entered on June 1, 2026, 3) setting aside and vacating the default judgment entered on June 16, 2026, 4) reinstating Defendants’ answer previously filed in this action, and 5) setting aside and vacating any writ of possession. This Motion is made on the grounds that the court’s order striking the answers, the entry of default and default judgment should be set aside or vacated based on inadvertence, surprise, mistake, or excusable neglect under California Code of Civil Procedure section 473(b). Moreover, the court can reinstate Defendants’ answers which were previously on file, and set aside and vacate any writ of possession, based on the above grounds and in conjunction with the Court’s statutory authority under CCP section 128(a)(8), and inherent authority as discussed in Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, Stegge v. Wilkerson (1961) 189 Cal.App.2d 1 and Levy v. Drew (1935) 4 Cal.2d 456.” (Notice of Motion, p. 2, lines 3-15).

Here, Defendants’ counsel’s motion to be relieved as counsel was granted on May 15, 2026. The Court’s minute order on that date also stated the following: “On the Court’s own motion, an Order to Show Cause Re: Status of Representations, why the Answer filed on 4/6/2026 for both defendants should not be stricken for Failure to Appear, for Failure to Prosecute, and enter Default is scheduled for 5/29/2026 at 08:30 AM in Department M at Torrance Courthouse. Moving party to give notice.” (Court’s Minute Order, dated May 15, 2026.)

Thereafter, Defendants’ former attorney provided

notice. Defendants acknowledge that they received a copy of Judge Tanaka's order issued May 15, 2026, made on Judicial Council form MC-053. That order provided, in relevant part: "7. a. The next scheduled hearing in this action or proceeding is set for (date, time, and place): May 29, 2026, 8:30 a.m., Dept M; AND June 30, 2026, 10:30 am, Dept M."

On a motion for relief from default, the moving party has the burden of showing that the neglect leading to default was excusable. "Neither mistake, inadvertence, or neglect will warrant relief unless upon consideration of all the evidence it is found to be of the excusable variety. To entitle [a party] to relief the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances." *Jackson v. Bank of America* (1983)141 Cal.App.3d 55, 58 (internal citations and quotations omitted).

A reasonably prudent person under the same circumstances would have carefully examined the order issued by Judge Tanaka on May 15, 2026. That order did give notice that there were two upcoming court dates, including the May 29th date. However, the order did not list the purposes of the date. Nothing in the record establishes that Defendants were adequately notified of the fact that Orders to Show Cause were scheduled or that their answers would be stricken and default judgment granted if they failed to appear at the next court date.

As such, Defendants state, with justification, that they had no notice that their Answer would be stricken without their appearance. (Decls., Chris Nakagawa, Cindy Nakagawa, ¶ 4). In the opposition to the motion, Plaintiffs also fail to indicate that they provided notice of the court's order or that Defendants obtained notice of the order through other means.

This is a very close case. In a close case such as the case at bar, this court will look to the intent of the Legislature. "The Legislature has determined that during the time frame provided by Code of Civil Procedure section 473 there is a strong public policy in favor of allowing litigants their day in court. Thus, by a lesser showing than extrinsic fraud (mistake, inadvertence, surprise, or excusable neglect) public policy favors setting aside judgments under section 473." *In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1070-71, quoted and cited with approval by the California Supreme Court in *Rappleyea v. Campbell*, *supra*.

Therefore, Defendants' timely-filed Motion to Set Aside and Vacate Order Striking Answers, to Set Aside and Vacate the Entry of Default, to Set Aside and Vacate the Entry of Default Judgment, to Reinstate Defendants' Answer, and to Vacate Any Writ of Possession is granted.

The Court will discuss with the parties the date for the UD trial to be set.

Defendants are ordered to give notice of this ruling.